

**SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY**

PRESENT: HON. DENISE M DOMINGUEZ PART 35M

Justice

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INDEX NO. 650204/2025

IAN REISNER

MOTION SEQ. NO. 001

Plaintiff,

- v -

**DECISION + ORDER ON
MOTION**

MAUREEN LUPO,

Defendant.

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The following e-filed documents, listed by NYSCEF document number (Motion 001) 19

were read on this motion to/for

INJUNCTION/RESTRAINING ORDER

For the following reasons, Plaintiff's motion by order to show cause (Seq. #1) is denied.

This action was commenced by the filing of a summons and complaint on January 13, 2025. The within motion by order to show cause was also filed on January 13, 2025. Upon review, the complaint and order to show cause seek the same relief and the order to show cause does not demonstrate a genuine urgency. (*see* 22 NYCRR §202.8-d and §202.7[f]).

Moreover, no affidavits of service related to the summons and complaint have been filed, nor was the motion by order to show cause served on the Defendant and the Defendant has not appeared in the action. Upon review, there appears to be no notice of this action, let alone the motion for a preliminary injunction pursuant to CPLR §6301 and §6311.

Accordingly, the motion by order to show cause is denied.

It is hereby

ORDERED that the Plaintiff's motion by order to show cause is denied; it is further

ORDERED that, within 20 days from the entry of this Order, Plaintiff shall serve a copy of this order with notice of entry on all parties and upon the Clerk of the Court the General Clerk's accordance with the procedures set forth in the *Protocol on Courthouse and County Clerk Procedures for Electronically Filed Cases* (accessible at the "E-Filing" page on the court's website)].

1/17/2025

DATE

CHECK ONE:

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CASE DISPOSED

☐

GRANTED

☒

DENIED

☐

SETTLE ORDER

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INCLUDES TRANSFER/REASSIGN

☒

NON-FINAL DISPOSITION

☐

GRANTED IN PART

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SUBMIT ORDER

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FIDUCIARY APPOINTMENT

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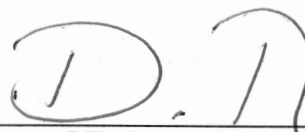
OTHER

☐

REFERENCE

APPLICATION:

CHECK IF APPROPRIATE:



DENISE M DOMINGUEZ, J.S.C.